

26STCV03754 26STCV03754

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-06-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C9%2C06%2F29%2F2026

Source SHA-256: e5effbdcc65b9d4ae329d03a8b929787fdd9780ef683b2522a63cfacca14a6e7

Case Number: 26STCV03754 Hearing Date: June 29, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the June 29, 2026 ISC. The parties are welcome to provide input and propose modifications to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the June 29, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

LENER

DAVID GARCIA, et al. vs GATE GOURMET, INC., 26STCV03754

[TENTATIVE] MINUTE
ORDER

Plaintiff's

Counsel has failed to file proof of service of the operative Summons and Complaint on all named defendants.

Specifically, Plaintiff's Counsel has failed to file proof of service of the operative Summons and Complaint on GATE GOURMET, INC.

By no later than August

10, 2026, Plaintiff's Counsel must file either proof of service of the operative

Summons and Complaint on GATE GOURMET, INC. or a declaration explaining the failure to file proofs of service of the operative Summons and Complaint on GATE GOURMET, INC., setting forth any and all efforts undertaken to attempt service of the operative Summons and Complaint on GATE GOURMET, INC., and explaining why sanctions (including monetary sanctions of at least \$500) should not be imposed for failure to file proof of service of the operative Summons and Complaint on all of the named defendants, in compliance with California Rules of Court, Rule 3.720.

Failure to file
proof of service of the operative Summons and Complaint on GATE GOURMET, INC.
by August 10, 2026 may result in the Court setting an OSC re sanctions.

All Defendants are
ordered to file a timely Notice of Appearance within 30 days of service of the
operative Summons and Complaint on them.

If any named
Defendant fails to timely respond to service of the operative Summons and
Complaint by filing a Notice of Appearance, Plaintiff must timely seek and
obtain entry of default against all such named Defendants who fail to timely
file a Notice of Appearance.

The operative
complaint currently does not include any claim for civil penalties pursuant to
Labor Code section 2699 (PAGA penalties).
However, paragraphs 51 through 53 of the Complaint allege as follows: "Plaintiffs
are currently complying with the procedures for bringing suit specified in Labor
Code § 2699.3. By letter dated February 3, 2026, required notice was provided
to the Labor and Workforce Development Agency ("LWDA") and Defendant, of the
specific provisions of the California Labor Code alleged to have been violated,
including the facts and theories to support the alleged violations. This Complaint will be amended when more than
sixty-five (65) days have passed since the date the notice was mailed to
Defendant and the LWDA, if the LWDA chooses not to investigate the allegations
herein."

If Plaintiff
wishes to amend the Complaint to add a claim for PAGA penalties and is prepared
to do so, the Court hereby lifts the stay to grant Plaintiff leave to file an
amended complaint adding a claim for PAGA penalties as long as Plaintiff files

and serves such amended complaint by no later than August 10, 2026. To be clear, the Court is not ordering Plaintiff to amend the operative Complaint; if Plaintiff voluntarily wishes to amend the operative Complaint to add a claim for PAGA penalties (as paragraphs 51-53 of the Complaint indicate), the Court is simply granting leave for Plaintiff to do so. By no later than August 10, 2026, Plaintiff must file and serve a status report as to whether Plaintiff intends to file either a separate action for PAGA penalties or an amended complaint in the instant action adding a claim for PAGA penalties, and if so, when Plaintiff intends to file the claim for PAGA penalties (either as a complaint in a separate action or by way of amendment to the complaint in this action).

The previously imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to August 24, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than August 17, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.